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Unequal Opportunity: Desegregation at the University of Virginia School of Law

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From its founding in 1819 until 1950, the University of Virginia remained a segregated, white-only institution. The judiciary played a crucial role in the desegregation of the University and other historically segregated schools. Indeed, legal precedent and the courts forced the University to admit its first black student, Gregory Swanson; however, the law is limited in its effect, as Swanson left the school due to the substantial social barriers that remained. Five years later, John Merchant entered the University and became the first black student to earn a Juris Doctor from the School of Law. This essay analyzes the legal history that led to Swanson's matriculation at the University of Virginia and compares the two case studies of Swanson and Merchant that illustrate the limitations of the judiciary and highlight the necessity of a "dual approach" through legal and social change to achieve equal opportunity in education.

INTRODUCTION

Qualified but "Colored." Gregory Swanson faced this problem when he applied to the University of Virginia School of Law (UVA Law) in 1950. Despite his scholarly brilliance and ample qualifications for an LL.M. degree, the Board of Visitors rejected his application solely on the basis of race, which quickly prompted a lawsuit from Swanson. In *Swanson v. the Rector and Visitors of the University of Virginia*, a federal district court sided with Swanson and ordered UVA Law to accept him as an LL.M. candidate. In the battle for equal educational opportunity, the law plays a major role in protecting the rights of minority populations; however, some scholars overemphasize the importance of legal progress since it is more concrete and easier to analyze.[1] Indeed, it is the neglected history of social change and individuals' perceptions that produce lasting improvements. This essay aims to accurately document legal history while properly including the social and individual components of the Civil Rights Movement that played a major role in altering the landscape of American higher education, building upon previous scholarship[2] that emphasizes the

[1] These scholars and their works include Mark V. Tushnet's *The NAACP's Strategy Against Segregated Education 1925–1950*; Carl W. Tobias' "Brown and the Desegregation of Virginia Law Schools"; Charles T. Clotfelter's *After Brown: The Rise and Retreat of School Desegregation*; and Richard Kluger's *Simple Justice: The History of Brown V. Board of Education and Black America's Struggle for Equality*.

[2] These scholars and their works include Tomiko Brown-Nagin's *Courage to Dissent: Atlanta and the Long History of the Civil Rights Movement*; Maurice Apprey and Shelli M. Poe's *The Key to the Door: Experiences*

bottom-up impact of desegregation. More specifically, this essay relies heavily on the case study of Gregory Swanson and John Merchant at the University of Virginia School of Law to expose the limitations of legal measures in achieving equal opportunity in higher education, and to highlight the importance of individual and social changes in bringing about a permanent pedagogical shift.

Swanson's victory was one of many victories civil rights lawyers secured in the federal courtroom during the 1940s and 1950s. Included in the list of victories were *Sipuel v. Board of Regents* (1948), *McLaurin v. Oklahoma State Regents for Higher Education* (1950), and most notably, *Sweatt v. Painter* (1950).[3] In 1954, the legal strategy for educational desegregation shifted drastically following *Brown v. Board of Education*, which declared "separate-but-equal facilities inherently unequal."[4] Such a victory was heralded by civil rights activists and celebrated among minority communities, as legal desegregation was dealt a fatal blow. A decade later, the Civil Rights Act of 1964 acted as the final nail in the coffin for segregation — at least from a legal perspective. What occurred was the end of what scholars label *de jure* segregation or segregation by law. Indeed, these legal developments stripped away formerly discriminatory legislation and, over time, tore down many forms of institutional racism. However, what is often forgotten in this telling of history is the persistent forms of *de facto* segregation that continued to linger for decades after the Civil Rights Act. Although segregation by law was deconstructed, segregation in practice, or *de facto* segregation, survived in many forms.

Recall the story of Gregory Swanson, who was admitted to UVA Law in 1950. Although he had decisively defeated segregation in the courtroom, *de facto* segregation at UVA remained strong and Swanson's story did not end happily ever after with the strike of a gavel. Unfortunately, racism and social isolation at UVA Law forced Swanson to abandon his pursuit of a graduate degree. His story is one that highlights the limitations of legal measures. The many developments in the courtroom ought to be celebrated, and the work of civil rights lawyers is in no way diminished; however, these victories are only one part of the process toward equal educational opportunity. This contrasts with the work of scholars like Carl Tobias, who cuts off the story of Swanson after his successful lawsuit,[5] or Mark Tushnet, who argues that the elites and

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of Early African American Students At the University of Virginia; Patricia Gandara, Gary Orfield, & Catherine Horn's *Expanding Opportunity in Higher Education*.

[3] Carl W. Tobias, *Brown and the Desegregation of Virginia Law Schools*, 39 U. RICHMOND L. REV. 39, 39 (2004).

[4] *Brown v. Board of Education of Topeka*, 347 U.S. 483 (1954).

[5] Tobias, *supra* note 3.

lawyers are the ones who bring about desegregation,[6] taking for granted the many societal barriers still in place after *Brown I*.

This essay does not argue for the irrelevance of legal progress, nor does it argue for the individual sufficiency of societal change; rather, it highlights the necessity of a dual approach to equal opportunity — one that relies on a bottom-up and a top-down approach. It is only with both legal and societal change present that advancements can be made. Section I will provide a relevant legal history leading up to the Swanson case. Section II will analyze the case study of Gregory Swanson, the limitations of the law in bringing about equal opportunity, and the many preexisting societal barriers in higher education. Section III will present the major progress made when both legal victories and societal change work in tandem, arguing for the efficacy of the dual approach to desegregation and equal opportunity.

I. A LEGAL HISTORY

Decades before Swanson applied to UVA Law, several black scholars fought in the courts for the right to learn, and it was through these cases that Swanson and his lawyers built a compelling argument that would result in his matriculation at UVA Law. The chain of events stretches back to the infamous *Plessy v. Ferguson*,[7] but the scope of this section will focus on cases in the 1900s that created the precedent that the Swanson case relied on. There are five cases of particular importance: *University of Maryland v. Murray* (1935), *Missouri ex rel. Gaines v. Canada* (1938), *Sipuel v. Board of Regents* (1948), *Sweatt v. Painter* (1950), and *McLaurin v. Oklahoma State Regents* (1950).

In 1934, Donald G. Murray graduated from Amherst College and applied to the University of Maryland law school. Murray "met the standards for admission to the law school,"[8] meaning he was qualified in terms of his skill set, academic achievement, and ability; however, he lacked the proper skin color according to the law school. As the appellate court found, Murray was "denied admission on the sole ground of his color."[9] This finding is shockingly similar to that of Swanson some 15 years later. The strategy of Murray's legal team was not to challenge the constitutionality of the separate but equal clause established in *Plessy*, but rather to use that exact precedent to order Murray's matriculation into the University of Maryland by proving that there was no "equal" facility in the state that Murray could have attended. Such a plan proved successful.

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[6] MARK V. TUSHNET, THE NAACP'S LEGAL STRATEGY AGAINST SEGREGATED EDUCATION, 1925–1950 (1987).

[7] *Plessy v. Ferguson*, 163 U.S. 537 (1896).

[8] *University of Maryland v. Murray*, 169 Md. 478, 480 (1936).

[9] *Id.*

The appeals court accepted Murray's argument and clarified that the constitutional requirement to "furnish equal treatment" supersedes any legislation prescribing the exclusive education of whites at an institution.[10] In response, the university argued that covering his application fees and tuition for a law school outside of the state constituted equal treatment; however, the court disagreed, reasoning that providing "an opportunity to attend an outside law school, at an increased expense, falls short of providing [colored students] facilities substantially equal to [facilities for white students]."[11] Thus, the court concluded that given the unique circumstances in Maryland, "equal treatment can be furnished only in the one existing law school, [Donald G. Murray], in our opinion, must be admitted there."[12] Thus, it was established that if a state has no equal facility and a colored applicant is qualified, any legislation requiring an exclusively white facility is void, and the colored applicant must be admitted.

After the appellate court ruled in favor of Murray, the University of Maryland elected not to pursue further litigation; thus, the established rule was binding only within the state. This changed in 1938 when the Supreme Court decided the future of Lloyd Gaines, a black scholar who was seeking admission into the all-white State University of Missouri law school. Gaines graduated from Lincoln University in 1935 and possessed the qualifications for admission into the law school, but was ultimately rejected because the school found that admitting a black student violated the state's constitution.[13] Similar to Murray's legal strategy, Gaines argued that within the framework of "separate but equal," the state failed to provide an equal facility and failed to provide proper remedies with its offer to build a facility in the state or pay for tuition at an out-of-state facility.

The Court cited *Murray*, finding that Missouri committed the same violation of the Fourteenth Amendment by failing to provide a separate and equal facility, and thus "instruction in law for negroes is not now afforded by the State, either at Lincoln University or elsewhere within the State."[14] In this case, the university offered two remedies to Gaines. Either the state could build a separate but equal law school at Lincoln University or pay for an out-of-state law school. The Court found that "the policy of establishing a law school at Lincoln University has not yet ripened into an actual establishment, and it cannot be said that a mere declaration of purpose, still unfulfilled, is enough. The provision for legal education at Lincoln is at present entirely

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[10] *Id.* at 485.
[11] *Id.* at 486–487.
[12] *Id.* at 488.
[13] *Missouri ex rel. Gaines v. Canada*, 305 U.S. 337, 342–343 (1938).
[14] *Id.* at 344–345.

lacking."[15] As for covering tuition, the Court avoided comparing the quality of education outside of Missouri, reasoning that "The basic consideration is not as to what sort of opportunities other States provide, or whether they are as good as those in Missouri, but as to what opportunities Missouri itself furnishes to white students and denies to negroes solely upon the ground of color."[16] Thus, the remedy of providing out-of-state tuition "does not remove the discrimination,"[17] and with such being established, the Court concluded that Gaines "was entitled to be admitted to the law school of the State University."[18]

Now the precedent established in Maryland under *Murray* was expanded upon and made nationally binding with *Missouri ex rel. Gaines*. In 1948, the Court applied *Missouri ex rel. Gaines* and strengthened it by declaring that a state must provide colored students with access to education "as soon as it does for applicants of any other group."[19] No longer could a state stop a colored student from receiving an equal education by presenting the excuse of a delay. These three cases were enough to earn Swanson the right to attend UVA Law, but in the following two cases, the Court's reasoning had substantial implications for the efficacy of "separate but equal" education. Although not necessary for the Swanson case's success, they speak to the shifting judicial attitudes toward the postgraduate education of colored individuals. In 1950, the Supreme Court decided *Sweatt v. Painter* and *McLaurin v. Oklahoma State Regents*, which answered the question, "To what extent does the Equal Protection Clause of the Fourteenth Amendment limit the power of a state to distinguish between students of different races in professional and graduate education in a state university?"[20]

Heman Marion Sweatt applied to the University of Texas law school in 1946 but was denied solely because he was black. When he sued the school, the Texas courts allowed the state to create a "separate but equal" law school in the next six months, and then deemed the new school "substantially equivalent," thus upholding the segregated condition of the University of Texas law school.[21] However, the Supreme Court had a different finding, unanimously agreeing that "we cannot find substantial equality in the educational opportunities offered white and Negro law students by the State."[22] It was not that "separate but equal" was inherently unequal, but rather, the specific circumstances presented were unequal.

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[15] *Id.* at 346.
[16] *Id.* at 349.
[17] *Id.* at 350.
[18] *Id.* at 352.
[19] *Sipuel v. Board of Regents*, 332 U.S. 631, 633 (1948).
[20] *Sweatt v. Painter*, 339 U.S. 629, 631 (1950).
[21] *Id.* at 631–632.
[22] *Id.* at 633.

The Court compared the University of Texas law school and the new law school for colored students, and after looking specifically at the faculty, course offerings, student body size, library contents, extracurricular opportunities, alumni networks, school traditions, and reputation, they determined that "the University of Texas Law School is superior."[23] While holding firm on the "separate but equal" doctrine established in *Plessy v. Ferguson* and the precedent set in the aforementioned cases regarding graduate education, the Court concluded that the "petitioner may claim his full constitutional right: legal education equivalent to that offered by the State to students of other races. Such education is not available to him in a separate law school as offered by the State."[24] Recall that in *ex rel. Gaines*, the Court intentionally avoided a comparison of an in-state school and out-of-state school, as such a comparison was unnecessary when the scope of comparison ought to be limited to the options within the state as prescribed by the Fourteenth Amendment.[25] What the Court did in *Sweatt* was compare two in-state schools and, given the substantial differences, order the desegregation of the superior, formerly exclusively white school.

Holding to precedent better than the Texas courts were the Oklahoma courts, which nullified state laws requiring segregation at certain institutions and ordered the University of Oklahoma to admit G.W. McLaurin, a black scholar pursuing a doctoral degree in education.[26] However, at the University of Oklahoma, McLaurin was required to sit at separate tables for classes and meals, which prompted him to sue again to remove such restrictions.[27] The school argued that McLaurin learned the same content from the same professor and had access to the same resources as white students, with the only difference being an assigned seat, which the state deemed had no disadvantage.[28] This argument was unanimously rejected by the Supreme Court, which found that "Such restrictions impair and inhibit his ability to study, to engage in discussions and exchange views with other students, and, in general, to learn his profession."[29] Thus, the Court concluded "that the conditions under which this appellant is required to receive his education deprive him of his personal and present right to the equal protection of the laws . . . [McLaurin] must receive the same treatment at the hands of the state as students of other races."[30]

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[23] *Id.* at 634.
[24] *Id.* at 635.
[25] *Gaines*, 305 U.S. at 349.
[26] *McLaurin v. Oklahoma State Regents*, 339 U.S. 637, 638–639 (1950).
[27] *Id.* at 640.
[28] *Id.*
[29] *Id.* at 641.
[30] *Id.* at 642.

Reflected in these five cases was the National Association for the Advancement of Colored People's legal strategy of working within the confines of the "separate but equal" doctrine established in *Plessy v. Ferguson*. Although the theory of "separate but equal" remained alive, it was severely weakened in the first half of the 20th century. *Murray* undermined popular state legislation that offered to send colored scholars to other states instead of desegregating in-state programs. This ruling was then made nationally binding in *ex rel. Gaines*, which was later strengthened in *Sipuel*, which required states to provide equal opportunity immediately. Finally, *Sweatt* and *McLaurin* limited the practical applications of "separate but equal" by ruling that a separate facility was substantially unequal and that discriminatory restrictions in an integrated school were unconstitutional.

II. GREGORY SWANSON AND THE LIMITATIONS OF THE LAW

Even the Supreme Court acknowledged the limitations of legal precedent and orders. In the *McLaurin* decision, Chief Justice Fred Vinson included his analysis of social dynamics and the consequences to such dynamics that would result from the Court's ruling. A major part of the decision was the severe damage caused by social segregation imposed by the state, which the Court deemed unconstitutional, as such "handicapped [McLaurin] in his pursuit of effective graduate instruction."[31] Vinson then considered the argument that removing the state's restrictions on colored students would do nothing, as he may still be socially segregated by choice of the students. However, segregation by choice of individuals was beyond the scope of the Court, and as Vinson put it, "There is a vast difference-a Constitutional difference-between restrictions imposed by the state which prohibit the intellectual commingling of students, and the refusal of individuals to commingle where the state presents no such bar."[32] Thus, once the legal obstacles were removed, courts could go no further in declaring social integration, and the degree of impact such limitations had is made no clearer than in the story of Gregory Swanson.

On January 19, 1950, Dean of UVA Law F.D.G. Ribble convened with the Committee on Graduate Studies to render a decision on Gregory Swanson's application. After deliberation, the Committee concluded that Swanson was "qualified for admission . . . [and] unanimously voted to admit the applicant." The Committee then deferred to the law school faculty to affirm the acceptance, which was approved with only one dissenting vote. Without any doubt, Swanson was a qualified and capable LL.M. candidate on the basis of his skill set, experience, and other components of his application. However, his abilities were not all that UVA evaluated. Despite the

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[31] *Id.* at 641.
[32] *Id.*

approval of the law school dean, law school faculty, and the Committee on Graduate Studies, the Board of Visitors voided the acceptance. In an approved statement, the Board explained that "the applicant is a colored man . . . [and] white and colored shall not be taught in the same schools."[33] There was no attempt at a cover-up. The reason for Swanson's rejection was unmistakable — he was black.

Unfortunately for Swanson, the Board of Visitors had legal grounds for such a statement, with the Virginia state constitution forbidding "integrated government-supported education." On its face, the state constitution seems to explicitly require the actions of the Board. However, the state's Attorney General, J. Lindsey Almond Jr., contacted the Board before they rejected Swanson, informing them that the state's constitutional provisions, prohibiting integrated education, did not apply to graduate schools.[34] Knowing that the state's constitution did not apply, the Board still proceeded to reject Swanson on the basis of race. Agreeing with Almond's interpretation and citing precedent set in *Sweatt v. Painter*, the court decided in favor of Swanson and ordered his acceptance to UVA Law. The court also held that rejecting an applicant purely on the basis of race violated the Fourteenth Amendment's equal protection clause, preventing UVA Law from rejecting future candidates due to race.

Although Swanson's legal victory marked an important moment in legal history, the decision was not the final chapter in his story at UVA Law. In his first year at UVA, Swanson "was not allowed to live or eat on [Grounds], nor was he allowed to attend social functions or sports events."[35] In addition to such isolation, he also faced "death threats and racial shunning,"[36] which forced him to leave the program and transfer to Howard University, a historically black college that provided the proper support systems for Swanson to thrive. The hostile environment and perception of racism and isolation overshadowed the decisive legal victory just a year prior, putting on full display the limitations of using law to garner equal opportunity. Perhaps Swanson was legally granted equal opportunity, but by no means was his opportunity equal in practice.

At the time that Swanson matriculated into UVA Law, the social landscape on Grounds consisted of racism, harassment, and even violence. The wife of a UVA professor, Sarah Patton Boyle, was a civil rights activist who publicly supported Swanson's fight, and as a result, "a Ku Klux Klan cross was burned on [her] lawn."[37]

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[33] *Swanson v. Board of Visitors Agreed Statement of Facts* (1950).

[34] Tobias, *supra* note 3, at 46–47.

[35] Taj'ullah Sky Lark, *Unlocking Doors: How Gregory Swanson Challenged the University of Virginia's Resistance to Desegregation. A Case Study*, 5 SPECTRUM J. BLACK MEN 71, 79 (2017).

[36] MAURICE APPREY & SHELLI M. POE, THE KEY TO THE DOOR: EXPERIENCES OF EARLY AFRICAN AMERICAN STUDENTS AT THE UNIVERSITY OF VIRGINIA 29 (2017).

[37] *Id.* at 31.

In another act of racism turned violent, UVA professor Paul Gaston was "severely beaten while participating in a 1963 desegregation sit-in at a Charlottesville restaurant."[38] Racism was not always violent, but it was still put on full display in many spaces at UVA to discourage and demoralize minority students. A blatant example of this was the hanging of Confederate flags at fraternity houses and even at school dormitories.[39] Additionally, the Corner — a staple in the UVA community where students shop, eat, and socialize — was off-limits to students of color. As John Merchant, a black law student, recalls, "Owners would not allow a black to enter their stores or remain there if you did enter. Any effort made to sit in a restaurant and have a burger and fries exposed you to serious bodily harm."[40] No wonder Swanson left after a year. Threats of violence, symbols of hate, and social isolation were conditions not conducive to a quality education. Despite the court order, equal opportunity remained glaringly absent at UVA.

Not only did the Swanson lawsuit fail to provide equal opportunity for Swanson, but the ruling that UVA Law could not reject future students on the basis of race also failed to yield much fruit. Despite the court's explicit interpretation of the state constitution's anti-integration provisions as not applicable to graduate programs, UVA Law continued to remain segregated for the most part.[41] In fact, law schools in Virginia as a whole failed to include black students. At the two publicly supported legal institutions, UVA and William & Mary, "desegregation's pace after 1950 was not expeditious . . . and was even slower in the private institutions."[42] Even with the *Brown* decision in 1954, desegregation was at best "characterized as gradual in the government-sponsored [law] schools."[43] On a broader level, the impact of court decisions was also limited in other fields of graduate study in Virginia, with "neither *Brown I* nor *Brown II* [leading] to a change in policy or practice."[44] Swanson's legal victory seemed like a major turning point in graduate education in Virginia; however, its impact, and even the impact of the Supreme Court in *Brown*, was truly limited both in Swanson's life and in the overall desegregation of the state's graduate programs. Although the decisions were limited in bringing about equal opportunity and social barriers remained prevalent at UVA, Swanson's victory and the *Brown* decision did serve a paramount purpose in clearing the legal hurdle for future generations and creating a foundation from which future students could build.

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[38] *Id.*

[39] *Id.* at 63.

[40] *Id.* at 91.

[41] Tobias, *supra* note 3, at 48.

[42] *Id.* at 51.

[43] *Id.*

[44] PETER WALLENSTEIN, HIGHER EDUCATION AND THE CIVIL RIGHTS MOVEMENT: WHITE SUPREMACY, BLACK SOUTHERNERS, AND COLLEGE CAMPUSES 46 (2008).

The case study of Swanson's attempt to enter UVA Law and his subsequent social struggles was one not uncommon to minority students in American higher education as a whole. A study on public universities found that "even though African-American student access has increased . . . the campus community and academic environment of recently desegregated institutions constituted a vestigial barrier to African-American student retention and performance." [45] The first step was accomplished by the law, with *Brown I* and *Brown II* prohibiting public segregation, and the Civil Rights Act of 1964 using the power of federal funding to dismantle racial discrimination in public educational programs. However, the concerningly poor performance of minority students exposed an incomplete process that required further efforts on the part of communities and individuals. With *de jure* segregation mostly brought to an end by the diligent efforts of civil rights activists and lawyers, *de facto* segregation in the form of hostile campus environments became the next target to bring about pedagogical progress.

To believe that legislation and court decisions alone can bring about equal opportunity is foolish and evidently insufficient. Such insufficiency was exposed in the individual story of Gregory Swanson, but also in the stories of institutions across America. In a Swanson-esque manner, black students were legally integrated into universities, but when faced with blatant racism, discrimination, and isolation, they were practically forced to leave. At the University of Massachusetts and Rutgers University, serious racial conflicts on the part of students and faculty resulted in an immediate decline in black enrollment — a perfect parallel to Swanson's story, just on a larger scale.[46] Gregory Swanson and many other minority students faced the societal and personal struggles of a hostile college campus, which negated the perceived progress of courtroom victories and legislative triumphs. The work of civil rights activists and lawyers was on full display in securing *de jure* victories, but their work was incomplete since the ultimate goal of equal opportunity remained unfulfilled. In the post-*Brown* era, *de facto* segregation was the primary obstacle to minority students seeking higher education. The top-down legal approach laid the foundation for minority students to enter predominantly white spaces of higher education, but was ultimately limited in its impact. With legal obstacles removed, activists' attention could shift to developing the societal infrastructure that, when coupled with legal victories, would produce adequate conditions for equal opportunity and compound the law's impact.

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[45] JOHN B. WILLIAMS, RACE DISCRIMINATION IN PUBLIC HIGHER EDUCATION: INTERPRETING FEDERAL CIVIL RIGHTS ENFORCEMENT 1964–1996 120 (1997).

[46] LAURENCE R. MARCUS, FIGHTING WORDS: THE POLITICS OF HATEFUL SPEECH 92 (1996).

III. JOHN MERCHANT AND A DUAL APPROACH

Following in the footsteps of Gregory Swanson, John F. Merchant matriculated into UVA Law in 1955 as a J.D. candidate. In no small part, Swanson's lawsuit a few years prior played a major role in tearing down the *de jure* barriers to Merchant's acceptance to a historically segregated school. Indeed, the courtroom victories played a major, but incomplete, role in the fight for equal opportunity, as post-*Brown* college campuses across America remained highly racist, unaccepting, and isolating. On Merchant's first day, he encountered a Confederate flag in the window of a dorm, and he recalled that "an eerie feeling of being in a 'foreign country' appeared and would not go away."[47] The UVA that Merchant experienced was very similar to the UVA that isolated and forced Swanson to leave in 1951, but somehow Merchant survived and became the first black graduate of UVA Law, which begs the question: What changed?

For the most part, the legal structures for desegregation remained mostly constant between 1950 and 1955. Both Swanson and Merchant were protected by the federal court order prohibiting UVA Law from rejecting applicants purely on the basis of race.[48] The only development was the *Brown I* decision, but recall that well into the 1960s, "neither *Brown I* nor *Brown II* led to a change in policy or practice [at UVA],"[49] thus having virtually no impact on Merchant. This creates an opportunity to compare the case studies of Swanson and Merchant, with both receiving the legal means to attend UVA but experiencing drastically different outcomes. Although the legal progress of desegregation remained mostly stagnant, the distinct divergence between Swanson and Merchant was in their experience with the community and classmates.

Before exploring the societal change that produced an environment capable of cultivating success, it is important to note that by Merchant's graduation, UVA was not a place of progressive racial thought, nor was the fight to dismantle *de facto* segregation over. Rather, his story is one that highlights the necessity of a dual approach and the importance of societal factors in the fight for equal opportunity in higher education. Merchant entered into an environment filled with hostility, feeling like a foreigner as the only black student at UVA Law and as an outsider without any connections in Charlottesville.

In his first year, "a support system didn't exist . . . [and Merchant] was alone in his blackness," which almost led him to the same fate as Swanson, who years earlier left UVA due to racism and social isolation. Just as hope was running out, Merchant connected with three black families in Charlottesville, who "provided the respite

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[47] APPREY AND POE, *supra* note 36, at 64.
[48] Tobias, *supra* note 3, at 47.
[49] WALLENSTEIN, *supra* note 44, at 46.

needed to maintain a sense of mission, direction, and courage."[50] With families who were dedicated to creating a space of peace, friendship, and acceptance, he finally had a support system that Swanson lacked during his first year. Despite the isolation at UVA Law and the prevalent racism around Grounds, Merchant could endure it because he was not completely alone. He had a refuge to escape to, a home to refuel, friends to bear his burdens — he had a community. The presence of a community was the major difference between Swanson and Merchant, and as a result, Merchant could persevere through the many societal burdens of being a black student at UVA. Among these burdens were law school students who generally accepted him but also neglected his presence, especially during his first year. Fortunately, the culture of UVA Law was about to radically change for the good of Merchant and equal opportunity.

Merchant spent most of his first year alone and only found community outside of UVA Law, with Charlottesville families opening up their homes to black students; however, in his second and third years, students began to interact with him, and a major shift in campus culture was underway. This shift is best presented in Merchant's interaction with the law school student council. During his first year, the student council shunned Merchant, excluding him from planned social events — a clear example of *de facto* segregation. This was hardly surprising to Merchant, and he quickly moved forward with his studies, but in his second year, the student council requested a meeting with him to apologize for excluding him, which Merchant saw as "an important step for diversity."[51] The following year, the student council met with Merchant again and asked for his help in organizing social events at locations that would allow law school students of all races to participate. In just three years, the culture of UVA Law shifted from *de facto* segregation and neglect to acceptance and active efforts to include Merchant in social events. The student leadership of UVA Law "was adamant about its willingness to help break down existing social barriers," which led to Merchant's evaluation of his time at UVA Law to be "positive."[52]

Additionally, Merchant's inclusion in athletics played a major role in fostering a sense of belonging among his law school peers. As he explains it, "The issue [in athletics] is, 'Can you play and help us win?' not where did your parents come from."[53] The realm of sports was a place to bond, compete, and, in a sense, prove one's belonging. Merchant utilized this to build relationships, which, in no small part, strengthened him while being the only black student at UVA Law. Further, Merchant took advantage of UVA Law's strong softball culture by participating and winning the

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[50] APPREY AND POE, *supra* note 36, at 65.
[51] *Id.* at 86.
[52] *Id.* at 88.
[53] *Id.* at 89.

university softball championship in 1957. On one occasion, Merchant and his team of law school students were forced to play on a different field due to the color of his skin, which the *Virginia Law Weekly* criticized in a front-page story. Merchant recounts this experience and the support of law school peers to publicly criticize discrimination as "important memories . . . [of] very positive action by people who cared."[54] Through athletics, Merchant found another way of belonging, and it produced individual agents who supported his presence.

From isolated and hopeless to cared for and optimistic, Merchant's experience at UVA Law is one of drastic societal change, which produced a drastically different outcome. While Gregory Swanson suffered through a year of harassment, racism, and threats without any support, Merchant bore those burdens with the help of Charlottesville's black community and his fellow classmates. Two black students with the same legal support but radically different social experiences and outcomes, such is the powerful effect of a dual approach to equal opportunity. The law without social support results in the fate of Gregory Swanson. When legal precedent and positive social infrastructure work in tandem, the natural product is radical change and progress. Comparing the stories of Swanson and Merchant highlights the limitations of the law and emphasizes the pedagogical progress resulting from a combination of a top-down and bottom-up approach.

CONCLUSION

The law is important and a major pillar of the civil rights movement, but its significance is often overemphasized at the cost of neglecting societal progress, or the lack thereof. Understanding the distinction between *de jure* and *de facto* segregation is essential in interpreting the factors that actually achieve equal opportunity in higher education. Equal opportunity is not a political theory; it is something that is accomplished in reality. I do not mean to diminish the work of civil rights lawyers and activists in dismantling discriminatory precedent and legislation, but the *de jure* victory is just one part of a dual approach. In isolation, the law is limited, and its effects are hindered by the prevalence of *de facto* segregation, as is evident in the story of Gregory Swanson's time at UVA Law. However, when the law is coupled with societal change that allows for proper support systems to develop, the educational impacts of the law are multiplied, as is evident in the story of John Merchant. The desegregation of UVA Law provides a model for interpreting the effectiveness of law, and in doing so, the dual approach is shown to be the most effective in producing equal opportunity. One is not more important than the other; the law is not more effective than the people,

[54] *Id.* at 17.

nor are the people more effective than the law — balance is the key. It takes both legal progress and societal change for equal opportunity to be realized.

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Schoolhouse Secrets: Parental Rights and Gender Identity Disclosure in the American Classroom

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In 2025, two key cases reviewed school policies on a parent's right to be informed of their student's use of a gender-nonconforming name or pronoun. The first case, Foote v. Ludlow School Committee *(2025), was dismissed by the United States Court of Appeals for the First Circuit after the court found no violation of a fundamental right. The second case,* Mirabelli et al. v. Olson et al. *(2025), yielded an entirely opposite result; the United States District Court for the Southern District of California found that the parents' rights were violated, and the school's policy faced a permanent injunction. These contrasting results highlight ongoing disagreements about gender identity, parental authority, the right to privacy, the right to freedom of religious expression, and the government's ability to control and protect students within public institutions. This review examines the jurisdictional and doctrinal differences underlying these decisions, the constitutional rights implicated, and state and federal statutes currently shaping this area of law.*

INTRODUCTION

Gender identity, gender dysphoria, and the use of gender-nonconforming pronouns are issues of great sensitivity and nuance within the United States' social and political landscape. There lacks any clear consensus among Americans; most public opinion polls reveal a great divide across age, race, and party affiliation. For example, in a 2022 survey by Pew Research, younger Americans tended to favor increased healthcare regarding gender transitions when compared to Americans over thirty.[1] Additionally, other research shows a steady increase in the percentage of citizens who are broadly identifying as LGBT (lesbian, gay, transgender, or bisexual) as the observed group of citizens gets younger.[2] When considering the issue from a political stance, the notable difference in opinion remains. Seventy percent of Republicans and those leaning Republican stating that societal views on gender identity and transgender people were changing too quickly, while only twenty-one percent of Democrats and

[1] Anna Brown et al., *Americans' Complex Views on Gender Identity and Transgender Issues*, PEW RESEARCH CENTER (Jun. 28, 2022), https://www.pewresearch.org/social-trends/2022/06/28/americans-complex-views-on-gender-identity-and-transgender-issues.

[2] Kerith J. Conron & Andrew R. Flores, *Adult LGBT Population in the United States*, WILLIAMS INSTITUTE, UCLA School of Law (Dec. 2023), https://williamsinstitute.law.ucla.edu/wp-content/uploads/LGBT-Adult-US-Pop-Dec-2023.pdf.

those leaning Democrat agreed.[3] These data reveal tension surrounding the direction of politics, healthcare, and social treatment for transgender individuals. While one group might seek to advance the rights and protections of transgender or gender-nonconforming individuals, another group might believe that it would be a cultural or political overreach to do so.

Nowhere is this disagreement more heightened than in the public school system. Multiple groups are actively seeking for their side to be considered most important. Parents desire the right to be informed of their child's behavior while at school. Students seek a right to privacy while they are in a safe learning environment. Teachers are caught between following school policies and being honest with parents who have questions. Administrators and school board members hope to create regulations that increase safety, efficiency, and trust. Two similar lower court cases from 2025 focused on this topic of gender identity and school policies.

The first case, *Foote v. Ludlow School Committee* (2025), relates to a policy change at a middle school in Massachusetts. Ruled in February, *Foote* focuses on a policy that allows a student to request a certain name and gender pronouns to be used at school without notifying the parents unless the student consents.[4] The United States Court of Appeals for the First Circuit found no fundamental right violation and dismissed the parents' complaint. The second case, *Mirabelli et al v. Olson et al* (2025), was ruled in December, yet it yielded an entirely opposite result.[5] In *Mirabelli*, the United States District Court for the Southern District of California found that the parents' rights were violated, and the school's policy faced a permanent injunction. Both cases are currently undergoing an appeals process to the Supreme Court of the United States and the United States Court of Appeals for the Ninth Circuit, respectively.

This review will begin by observing key jurisdictional and doctrinal differences between the United States Court of Appeals for the First Circuit and the United States District Court for the Southern District of California, which falls under the Ninth Circuit, as a means of explaining why these cases reached different conclusions. Afterwards, there will be a section on the rights of parents, students, and teachers as established by the Constitution and by prior ruling. Finally, this review will inspect relevant existing federal legislation on the topic.

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[3] Brown et al., *supra* note 1.

[4] Foote v. Ludlow School Committee, 128 F.4th 336, 358 (1st Cir. 2025).

[5] Mirabelli et al v. Olson et al, No. 3:2023cv00768, Document 308 (S.D. Cal. 2025).

I. JURISDICTIONAL & DOCTRINAL DIFFERENCES

Looking first at *Foote*, there is clear precedent within the First Circuit Court of deferring to government authority in cases of disagreement between parents and school districts. For example, the First Circuit ruled in *Brown v. Hot, Sexy and Safer Productions, Inc.* (1995) that parents do not have the right to dictate school curriculum, and that even if a parent considers some subject matter to be morally offensive, the school may still teach that content.[6] The court stated: "We do not think... that this freedom [for parents to rear children in their preferred way] encompasses a fundamental constitutional right to dictate the curriculum at the public school to which they have chosen to send their children."[7] They derived this opinion partially due to the immense administrative burden that might occur if every parent could force the school to teach their children certain material, but also due to their interpretation of prior precedent that had initially established a parent's right to raise their child with certain freedoms. The court in *Foote* referenced *Brown* when explaining that schools have the "right to control [their] curricular and administrative decisions" and that parents cannot demand that a school teach a certain concept in a certain manner.[8] Another example of the First Circuit's tendency to defer to school authority is seen in *Parker v. Hurley* (2008). Here, the court reemphasized its stance from *Brown* and ruled that exposure to ideas, in this case same-sex families within a novel, does not violate parental rights. The First Circuit stated that "[p]ublic schools are not obliged to shield individual students from ideas which potentially are religiously offensive," and that there was no viable argument of indoctrination.[9] When observing the rulings of both *Brown* and *Parker*, it is clear that the First Circuit takes a narrower approach to a parent's right to rear children, as well as provides broad structural deference to schools for their programming and learning materials.

Moving to *Mirabelli*, the U.S. District Court for the Southern District of California is bound by stare decisis to the rulings of the Ninth Circuit, therefore it is helpful to observe the opinions of the Ninth Circuit's cases by using the same focus as above in *Foote* with the First Circuit. Doing so, it is clear that the Ninth Circuit provides much stronger protections of parental rights than the First Circuit does. One case demonstrating this point is *Wallis v. Spencer* (2000). In this case, the court found that parents must provide the school with consent to complete intrusive medical exams, otherwise the school would be violating the parents' rights.[10] Overall, *Wallis* emphasized the importance of parental decision-making. The Court stated that "[t]he

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[6] Brown v. Hot, Sexy & Safer Prods., Inc., 68 F.3d 525 (1st Cir. 1995).
[7] *Id.* at 525.
[8] Foote, 128 F.4th at 364.
[9] Parker v. Hurley, 514 F.3d 87 (1st Cir. 2008).
[10] Wallis v. Spencer, 202 F.3d 1126 (9th Cir. 2000).

right to family association includes the right of parents to make important medical decisions for their children, and of children to have those decisions made by their parents rather than the state."[11] The First Circuit reaffirmed this key parental power in *Mueller v. Auker* (2012) when the court discussed other medical issues, finding that parents required timely notice except in rare emergency circumstances.[12] These cases highlight the Ninth Circuit's tendency to favor parental protection and consent over state control.

These differences in interpretation rely on each districts' individual precedent. However, *Foote* and *Mirabelli* are both bound to the rulings of the Supreme Court of the United States by stare decisis. It is therefore important to consider how these differing districts handled the same cases. There are three key Supreme Court cases relevant to the topic of parent and student rights in education: *Meyer v. Nebraska* (1923), *Pierce v. Society of Sisters* (1925), and *Troxel v. Granville* (2000). The court in *Foote* accurately acknowledged that all of these cases "[fall] within the broader, well-established parental right to direct the upbringing of one's child."[13] Beginning first with *Meyer*, below is an examination of how the courts for *Foote* and *Mirabelli* applied these cases to their own rulings.

II. INTERPRETED SUPREME COURT PRECEDENT

In *Meyer v. Nebraska* (1923), the court found that a state law forbidding the teaching of German in schools violated the Fourteenth Amendment. The underlying goal of the law was the inhibit foreigners from teaching their children a native language, thereby interfering with a parent-child relationship by way of the public school system. This law was affirmed to be unconstitutional, and the right to "establish a home and bring up children" was considered generally protected by the Fourteenth amendment.[14] The First Circuit in *Foote* acknowledged that *Meyer* discusses this larger, more fundamental right when explaining its ruling as opposed to merely targeting the right to allow a child to learn German at school. However, when the court studied the ways in which the parents claimed they faced restrictions of this right, the court remained unconvinced that the school policy violated their right. They state that "[t]o the extent the Parents oppose certain academic assignments, the use of a student's pronouns in the classroom, decisions about bathroom access, and a guidance counselor speaking to a student, none of these concerns restrict parental rights under

[11] *Id.* at 1126.
[12] Mueller v. Auker, 700 F.3d 1180 (9th Cir. 2012).
[13] Foote, 128 F.4th at 358.
[14] Meyer v. Nebraska, 262 U.S. 390, 399 (1923).

the Due Process Clause."[15] The court instead claims that the parents are challenging the academic environment under which their child is currently learning, which the First Circuit continuously finds to be under the control of the school, as described above in *Brown* and *Parker*.

The Southern District of California's interpretation of *Meyer* as seen in *Mirabelli* is entirely different from the First Circuit's conclusion in *Foote*. The District Court reads *Meyer* with greater emphasis, stating that parental rights "[encompass] both a right to direct a child's education and a duty to provide for a child's health care."[16] *Mirabelli* focuses on the idea that parents should have the ability to make decisions for their children, even if those decisions might not be exactly what the child wants, due to the fact that parents typically have their child's best interests at heart. This concept is especially potent in issues related to healthcare, and strong parental rights can be seen in other Supreme Court cases such as *Parham v. J.R.* (1979).[17] To support this concept in connection with gender identity, the court for *Mirabelli* spends time explaining the health risks of identifying as a different gender than that assigned at birth, particularly mental health risks of gender dysphoria. By doing so, the plaintiff and the court is able to find adequate reasoning for alerting parents of their child's change in self-identification at school.

The second key Supreme Court case relevant to both *Foote* and *Mirabelli* is *Pierce v. Society of Sisters* (1925). The court in *Pierce* unanimously struck down Oregon's Compulsory Education Act which required that children attend only public schools between the ages of eight and sixteen. This Act effectively banned parents from sending their children to private or religious schools. Referencing *Meyer*, the case reads that parents have the liberty to "direct the upbringing and education of [their] children," and also that a "child is not the mere creature of the State; those who nurture him and direct his destiny have the right, coupled with the high duty, to recognize and prepare him for additional obligations."[18] As was seen with *Foote*'s interpretation of *Meyer*, however, this liberty to "direct" a child's education does not constitute a liberty to control the operations of faculty and staff within the school in the eyes of the First Circuit Court. *Foote* points out a key difference between its ruling and the ruling seen in *Pierce*. While *Pierce* focused on education that the state unconstitutionally banned, *Foote* focuses on education that the state supports.[19] *Foote* is not about public school broadly, but it is instead about an internal component of this schooling, which the First Circuit considers to be under the legal control of the state. In other words, the

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[15] Foote, 128 F.4th at 367.
[16] Mirabelli, 3:2023cv00768, Document 308 at 13.
[17] Parham v. J.R., 442 U.S. 584, 602-603 (1979).
[18] Pierce v. Society of Sisters, 268 U.S. 510, 534-535 (1925).
[19] Foote, 128 F.4th 336, at 388.

government is not forcing students to go to a school that makes all its students go through a gender transition, but instead the government is allowing schools to include gender-related discussion in a program or conversation. On the flipside, *Mirabelli* references *Pierce* in passing to emphasize the high duty that parents have towards their children to act in their best interest.[20] This contrast shows how *Foote* applies cases narrowly, while *Mirabelli* interprets the same rights broadly.

Thirdly and finally, *Troxel v. Granville* (2000) is an important case for *Foote* and *Mirabelli*. In *Troxel*, the Supreme Court ruled that parents possess the fundamental right to determine who may visit their children.[21] This right, which is more broadly understood as the right to direct the care, custody, and upbring of one's children, is described in *Troxel* as "perhaps the oldest of the fundamental liberty interests recognized by th[e] Court."[22] *Foote* referenced this parental right in their summary judgment, however as was shown with their use of the other cases above, the court determined that the school policy did not violate the right. The court highlights that a school can speak to and share resources with interested students on topics of gender and sexuality without violating parent's rights. *Foote* uses the following example: "But providing educational resources about LGBT-related issues to a child who has shown interest imposes no more compulsion to identify as genderqueer than providing a book about brick laying could coerce a student into becoming a mason."[23] By containing the issue within an academic, material-based context, *Foote* can avoid the need to defend challenging positions that are more closely related to a parent.

If *Foote* is an example of narrowing the rights found in *Troxel*, then *Mirabelli* does the opposite. *Mirabelli* applies *Foote* liberally, and it shows how parent's rights are broad and ongoing. The court for *Mirabelli* states that "[p]arental involvement in essential to the healthy maturation of schoolchildren," and that the "California's public school system parental exclusion policies place a communication barrier between parents and teachers."[24] This line clarifies the intent of *Mirabelli*; the court is not attempting to pass all teaching powers off to the parents, but the court instead desires for parents to have an intentional presence in their child's education.

III. CONSTITUTIONAL RIGHTS OF TEACHERS

Alongside the parents and students, these school policies greatly impact school faculty. This group is emphasized more in *Mirabelli* than in *Foote*. This is likely due to

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[20] Mirabelli, 3:2023cv00768, Document 308 at 13.
[21] Troxel v. Granville, 530 U.S. 57 (2000).
[22] *Id.* at 65.
[23] *Id.* at 377.
[24] Mirabelli, 3:2023cv00768, Document 308 at 51.

the fact that *Mirabelli* discusses the fear that teachers in the district faced if they did not follow the school board's nondisclosure rule. The case states that "[a]dministrators made it clear... that failing to adhere to the policy would result in termination."[25] This became especially important in *Mirabelli* because there were teachers who felt the policy was against their faith since they would be expected to lie or hide the truth from parents. Ultimately, therefore, this is an issue of the right to the freedom of expression, which can be found in the Constitution and reads: "Congress shall make no law... prohibiting the free expression" of religion.[26] Since the Fourteenth Amendment incorporated this clause, the right to freedom of expression must also not be abridged by state or local law. One important question the court should consider is whether the government as a public employee should have the ability to enforce such a policy as is seen in *Mirabelli*.

Public school teachers are public employees to the government. This provides the government with some abilities to restrict the actions of their teachers, and there are multiple cases that establish this control. For example, the Supreme Court in *Connick v. Myers* (1983) states that "[w]hen employee expression cannot be fairly considered as relating to any matter of political, social, or other concern to the community, government officials should enjoy wide latitude in managing their offices, without intrusive oversight by the judiciary in the name of the First Amendment."[27] Even more recently, the Supreme Court in *Garcetti v. Ceballos* (2006) said a public employee must, "by necessity ... accept certain limitations on his or her freedom" because his or her speech can "contravene governmental policies or impair the proper performance of governmental functions."[28] The government has the ability to redirect or restrict the behavior of their employees. This can be helpful, especially when considering the inefficiencies and risks that could arise from an inability to adjust anything that a teacher is doing in the classroom. However, teachers do not lose all of their rights while they are fulfilling their official duties. The court must seek to balance the government's power and a teacher's right to freedom of expression. One way the court could determine if the government should possess a certain dominance is to observe the constitutionality of the school's policy. If the policy conflicts with a state law, then the policy cannot stand. A second method of determining which side's interests are weightier is to conduct a balancing test, as is seen in *Connick* and *Pickering v. Board of Education* (1968). In *Pickering*, the Supreme Court stated that "[t]he teacher's interest as a citizen in making public comments must be balanced against the State's

[25] Mirabelli, 3:2023cv00768, Document 308 at 44.
[26] U.S. Const. amend. I.
[27] Connick v. Myers, No. 461 U.S. 138, 146 (1983).
[28] Garcetti v. Ceballos, 547 U.S. 410, 418 (2006).

interest in promoting the efficiency of its employees' public services."[29] If either *Foote* or *Mirabelli* reach the Supreme Court, then the court could also create a new test to further clarify parental rights.

IV. STATE & FEDERAL LEGISLATION ON EDUCATION RIGHTS & PROTECTIONS

Federal legislation relevant to the topic of education and parent knowledge includes the Family Educational Rights and Privacy Act of 1974 (FERPA), as well as the Protection of Pupil Rights Amendment of 1978 (PPRA). Both FERPA and PPRA apply to K-12 schools, and FERPA also applies to colleges and universities in the United States. In brief, FERPA discusses what, how, and when schools can disclose health information to parents. This could be important in cases where a student is considering or actively participating in surgeries or medication processes related to their gender. Both *Foote* and *Mirabelli* focus on pronoun and name usage as opposed to specific medical changes, making FERPA less relevant to these cases. It is important to note, however, that while *Foote* completely dismisses the idea of a name or pronoun being considered something medical, *Mirabelli* highlights possible medical ailments in the form of psychological struggles such as gender dysphoria in its reasoning for alerting parents in order to increase a student's access to support.

The PPRA establishes a parental right to inspect material and curriculum prior to their student experiencing it. More specifically, it reads that "[a]ll instructional materials... shall be available for inspection by the parents or guardians of the children."[30] This statement creates a baseline level of parental right to supervision over that which occurs in the classroom. Additionally, the PPRA outlines rights of students' privacy: "[n]o student shall be required... to [reveal] information concerning (1) political affiliations or beliefs of the student or the student's parent; (2) mental or psychological problems of the student of the student's family; (3) sex behavior or attitudes... (7) religious practices, affiliations, or beliefs of the student or student's parent."[31] These listed categories are some of the most sensitive areas of a person's life, so preventing government intrusion in these sectors is important. This section of the PPRA also helps to prevent compelled speech, which could violate the First Amendment, as well as coercion. Ultimately, it protects students from being forced to reveal personal information, but it does not regulate voluntary sharing, and it also does not state that if such information is voluntarily shared, then the parents must be

[29] Pickering v. Board of Education, 391 U.S. 563, 568 (1968).
[30] Protection of Pupil Rights Amendment, 20 U.S.C. § 1232h (2022).
[31] *Id.*

notified. Contacting the parents about details depends upon FERPA and health records, as well as local and state policy.

The SAFETY (Support Academic Futures and Educators for Today's Youth) Act in California is an example of state policy clarifying what a teacher must do in a situation where a student shares personal information such as a gender or pronoun change. This act, passed earlier in 2025, states that it will "prohibit school districts, county offices of education, charter schools, and the state special schools, and a member of the governing board or body of those educational entities, from enacting or enforcing any policy, rule, or administrative regulation that requires an employee or a contractor to disclose any information related to a pupil's sexual orientation, gender identity, or gender expression to any other person without the pupil's consent unless otherwise required by law, as provided."[32] This Act means that no teacher or public-school employee may be forced to share this personal information with a parent or guardian. If a teacher desires to share with a parent, then they possess the capacity to do so. This SAFETY Act is crucially different from the school policies in *Mirabelli*, which the State Department of Education developed. The policies in *Mirabelli*, as per the summary judgment, "[were] designed to create a zone of secrecy around a school student who expresses gender incongruity. The policies restrain public school teachers and staff from informing parents about a child's unusual gender expression, unless the child consents."[33] While the SAFETY Act gives teachers the option to share or not, the policies upon which the Southern District of CA ruled did not provide teachers with a choice. This contrast is important because the SAFETY Act does not inhibit teachers, but the policies in *Mirabelli* do, which create issues for teachers' rights to freedom of expression as described above.

CONCLUSION

At this time, *Foote* and *Mirabelli* are both under the appeals process, being sent to the Supreme Court of the United States and the Court of Appeals for the Ninth Circuit, respectively. Depending on the actions of these higher courts, the policies relevant to these cases might face injunctions, or they might be found constitutional and receive the approval of the court. Remembering the divide in opinion based on political party, it is helpful to note that the Supreme Court currently possess a strong conservative majority (6-3). Another piece of guiding information is the Supreme Court's most recent parental rights-related ruling: *Mahmoud v. Taylor* (2025). This case granted parents the First Amendment right to opt their child out of curriculum that

[32] Support Academic Futures and Educators for Today's Youth (SAFETY) Act, ch. 95, 2024 Cal. Stat. (codified at Cal. Educ. Code § 217).

[33] Mirabelli, 3:2023cv00768, Document 308 at 7.

includes LGBT content or themes in elementary school.[34] *Mahmoud* discusses a parental opt-out right, the right to control religious upbringing, and substantive due process rights such as the right to direct a child's education as discussed above in *Meyer* and *Pierce*. The Supreme Court split along ideological lines in their ruling in *Mahmoud*.

Relationships between the United States government and its people rest at the heart of the Constitution's rights and amendments. School policies must balance the powers of the government and the rights of parents. *Foote* and *Mirabelli* provide two different results of very similar issues, and the court should carefully consider the logic behind both cases' summary judgments when they inevitably face another decision related to these topics.

[34] Mahmoud v. Taylor, 606 U.S. 522 (2025).